

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JORGE RECINOS,

Petitioner

VS.

PATRICIA CARDONA,

Respondent

) Case Number: FMS-25-387600

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jorge Recinos (Father) and Respondent Patricia Cardona (Mother). They share two minor children: Aaliyah Recinos (DOB: 02/03/09) and Briana Recinos (DOB: 01/12/10).
- 2) On November 24, 2025, Father filed a Request for Order seeking sole legal custody and sole physical custody of the minor children. Father states, “the children were abruptly and unilaterally taken from my custody by their mother. I formerly had anywhere between 25-50% custody. Limited to no time with their dad is disruptive and harmful to their well-being.”
- 3) On December 29, 2025, the Court continued the matter to February 2, 2026 for lack of service.
- 4) On February 2, 2026, the Court referred the parties to Family Court Services (FCS) Mediation on February 17, 2026 and set the matter for return hearing on April 14, 2026.
- 5) On 4/2/26, Mother filed a Responsive Declaration in opposition to Father’s Request for Order. Mother seeks sole legal custody and sole physical custody, with visitation for Father at the discretion of the minor children who are 16 and 17 years old. Mother states the children have

1 refused to spend time with Father since September of 2025. Mother asserts safety concerns for the
2 minor children when they are in Father's care.

- 3 6) On April 14, 2026, the parties were re-referred to FCS for further mediation at Petitioner's
4 request. Further mediation was set for May 7, 2026 with a return on June 4, 2026. The Court
5 adopted its tentative ruling and ordered counsel for Respondent to prepare the Findings and Order
6 After Hearing (FOAH).

7 **B. Findings and Order**

- 8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child(ren) is the United States.
- 12 2) Given that the parties did not reach any agreements at FCS Mediation, all existing orders shall
13 remain in full force and effect.
- 14 3) Counsel for Respondent is ordered to prepare the FOAH for today's hearing and reminded the
15 Court has yet to receive the FOAH from the April 14, 2026 hearing.
- 16 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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